

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Keyne Jean Villert	Team: Team # 3	CCRB Case #: 201307909	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 08/25/2013 11:35 PM	Location of Incident: In the vicinity of § 87(2)(b)	Precinct: 61	18 Mo. SOL 2/25/2015	EO SOL 2/25/2015	
Date/Time CV Reported Tue, 08/27/2013 1:09 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 08/27/2013 1:09 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Blase Mucciariello	27102	941236	PSA 1
2. Officers			061 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Vincent Lindner	27944	945921	PSA 1
2. POM Scot Kashinsky	21885	947120	PSA 1

Officer(s)	Allegation	Investigator Recommendation
A.POM Blase Mucciariello	Abuse: On August 25, 2013, PO Blase Mucciariello questioned § 87(2)(b)	
B.POM Blase Mucciariello	Abuse: On August 25, 2013, PO Blase Mucciariello stopped § 87(2)(b)	
C.POM Blase Mucciariello	Abuse: On August 25, 2013, PO Blase Mucciariello frisked § 87(2)(b)	
D.POM Blase Mucciariello	Discourtesy: On August 25, 2013, PO Blase Mucciariello spoke rudely to § 87(2)(b)	
E.POM Blase Mucciariello	Abuse: On August 25, 2013, PO Blase Mucciariello searched § 87(2)(b)	
F.POM Blase Mucciariello	Force: On August 25, 2013, PO Blase Mucciariello used physical force against § 87(2)(b)	
G. Officers	Abuse: On an unknown date, officers did not process § 87(2)(b)'s complaint regarding an officer.	

Case Summary

On August 27, 2013, § 87(2)(b) filed this complaint with the Civilian Complaint Review Board (CCRB) via telephone.

On August 25, 2013, at approximately 11:35 p.m., § 87(2)(b) had just exited § 87(2)(b) in Brooklyn when PO Blase Mucciariello, PO Scot Kashinsky, and PO Vincent Lindner, of Police Service Area (PSA) 1, approached her in an unmarked patrol van. The following allegations resulted:

- **Allegation A – Abuse of Authority: On August 25, 2013, PO Blase Mucciariello questioned** § 87(2)(b)

§ 87(2)(g)

- **Allegation B – Abuse of Authority: On August 25, 2013, PO Blase Mucciariello stopped** § 87(2)(b)

- **Allegation C – Abuse of Authority: On August 25, 2013, PO Blase Mucciariello frisked** § 87(2)(b)

§ 87(2)(g)

- **Allegation D – Discourtesy: On August 25, 2013, PO Blase Mucciariello spoke rudely to** § 87(2)(b)

- **Allegation E – Abuse of Authority: On August 25, 2013, PO Blase Mucciariello searched** § 87(2)(b)

- **Allegation F – Force: On August 25, 2013, PO Blase Mucciariello used physical force against** § 87(2)(b)

§ 87(2)(g)

- **Allegation G – Abuse of Authority: On an unknown date, officers did not process** § 87(2)(b) **s complaint regarding an officer.**

§ 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) old at the time of the incident. She is a white woman who is 5'10" tall, weighs 130 pounds, and has blond hair and brown eyes.

On September 10, 2013, § 87(2)(b) was interviewed at the CCRB (encl. D1-D5). Her statement is summarized below.

On August 25, 2013, at approximately 11:35 p.m., § 87(2)(b) had just exited her friend's residence, located at § 87(2)(b) and was walking on the sidewalk on her way to a Dunkin' Donuts store, when an unmarked patrol van pulled over directly in front of her, on the sidewalk, near the intersection of Avenue W and Brigham Street in Brooklyn. § 87(2)(b) had remained inside the building for a few hours prior to exiting it. § 87(2)(b) had been able to enter the building by simply pulling the front door open because the lock to the door was broken at the time of the incident.

§ 87(2)(b) was wearing jean shorts and a tight-fitting white hooded jacket which did not cover her shorts pockets. § 87(2)(b) was holding a cell phone in one of her hands, had a pack of cigarettes inside one of her back pockets, and also had bills and a paper receipt inside another pocket.

PO Mucciariello, PO Kashinsky, PO Lindner, and an unidentified officer all exited the van and approached § 87(2)(b). PO Mucciariello first instructed § 87(2)(b) to drop her hands down to her sides and asked her, "Where is the fucking heroin?" § 87(2)(b) denied being in possession of heroin and PO Mucciariello eventually asked her whether she had anything in her possession. § 87(2)(b) then informed PO Mucciariello that she had some paper currency and a pack of cigarettes inside her pockets and PO Mucciariello instructed her to empty her pockets. § 87(2)(b) complied with the instruction.

Soon thereafter, PO Mucciariello grabbed one of § 87(2)(b)'s elbows and pushed her away from the street, towards the front fender of the van. PO Mucciariello then explained to § 87(2)(b) that a search of her pockets was going to be conducted. One of the other officers then stated to § 87(2)(b) that a cavity search would be performed if nothing was to be retrieved from her pockets. § 87(2)(b) then consented to a search of her pockets and PO Mucciariello entered her pockets.

PO Mucciariello eventually stated, "We know you have the fucking drugs," "You have fucking aspirin on you?," "What is your fucking name?," "Get the fuck out of here," and "Why are you so fucking surprised?" § 87(2)(b) was not frisked during the incident and no contraband was retrieved from her.

§ 87(2)(b) also alleged that, on either August 26 or 27, 2013, she went to the 61st Precinct stationhouse to file a civilian complaint in regards to the August 25, 2013, incident. § 87(2)(b) stated that she interacted with two officers, one of whom refused to file her complaint while the other instructed her to call the CCRB to file one. § 87(2)(b) described the first officer as a uniformed white female in her forties, who is approximately 6'1" tall, is overweight, and has blond hair. § 87(2)(b) described the second officer as a uniformed white male, who is approximately 6' tall, is muscular, and has black hair.

NYPD Statements:

Subject Officer: POLICE OFFICER BLASE MUCCIARIELLO

- *PO Mucciariello was § 87(2)(b) old at the time of the incident. He is a white man, is 5'9" tall, weighs 155 pounds, and has blond hair and blue eyes.*
- *On August 25, 2013, PO Mucciariello was assigned to Anti-Crime. PO Mucciariello was dressed in uniform and was working with PO Kashinsky and PO Lindner in an unmarked patrol van. PO Mucciariello worked from 6:00 p.m. to 2:35 a.m.*

Memo Book Entries

At 11:35 p.m., § 87(2)(b) was stopped in front of § 87(2)(b) for possibly having engaged in the criminal sale of a controlled substance. § 87(2)(b) was observed coming in and out of a drug-prone location. § 87(2)(b) kept on reaching at the front pockets of her shorts and she was frisked for safety purposes. No contraband was found as a result of the frisk. At 11:45 p.m., a Stop, Question and Frisk report was filed (encl. E1-E3).

Stop, Question and Frisk Report Number 2831

The Stop, Question and Frisk report related to this incident (encl. F1-F3), filed by PO Mucciariello, indicates that § 87(2)(b) was suspected of engaging in the criminal sale of a controlled substance.

The report indicates that PO Mucciariello had a reasonable suspicion to stop § 87(2)(b) based on his observation of her taking actions indicative of engaging in a drug transaction and her making furtive movements. § 87(2)(b) was also frisked following her making furtive movements and refusing to comply with PO Mucciariello's directions.

The report further indicates that § 87(2)(b) was not searched and that she was compliant during the stop.

PO Mucciariello marked that the area where the stop occurred had a high incidence of criminal sale of controlled substance offenses, that § 87(2)(b) gave evasive, false or inconsistent responses to PO Mucciariello's questions, and that she also changed direction or fled at the sight of PO Mucciariello.

CCRB Testimony

On January 8, 2014, PO Mucciariello was interviewed at the CCRB (encl. H1-H4). His statement is summarized below.

On August 25, 2013, at approximately 11:35 p.m., PO Mucciariello was inside an unmarked patrol van with PO Kashinsky and PO Lindner, in the vicinity § 87(2)(b) when he observed § 87(2)(b) enter § 87(2)(b) which is a New York City Housing Authority (NYCHA) operated building, and eventually exit it after remaining inside for two to three minutes. PO Mucciariello did not make any observations of § 87(2)(b) who was alone during the incident, prior to her entry. PO Mucciariello suspected § 87(2)(b) may have trespassed inside the building because he did not recognize her from the area and he also suspected that she may have engaged in a drug transaction because he knew the building to be a drug-prone location.

The officers exited the van, approached § 87(2)(b) who was approximately a hundred feet away from the building at that point, and PO Mucciariello ordered her to stop twice before she complied. PO Mucciariello approached § 87(2)(b) to ensure that she had a legitimate reason to have entered the building and that she did not participate in a drug transaction while inside it. PO Mucciariello did not have any other reason to stop § 87(2)(b). PO Mucciariello then asked § 87(2)(b) questions to the effect of, "Do you live in the building?" and "Were you visiting

somebody inside the building?" § 87(2)(b) replied that she was from Florida and that she was visiting a friend inside the building. PO Mucciariello did not make any attempts to verify § 87(2)(b)'s statements and instead "took her word for it."

While speaking with § 87(2)(b) PO Mucciariello observed her repeatedly reaching towards and into her front short pockets. PO Mucciariello had also observed § 87(2)(b) make that movement prior to the stop. However, PO Mucciariello later stated that he only observed § 87(2)(b) make that motion three times. PO Mucciariello ordered § 87(2)(b) to stop making that motion thrice before she eventually complied. PO Mucciariello stated that, solely at that point, he may have asked § 87(2)(b) whether she had anything inside her pockets because of the movements she had been making. PO Mucciariello then frisked § 87(2)(b)'s pockets for safety purposes, but did not feel any objects which would have alarmed him. PO Mucciariello did not observe any bulges on § 87(2)(b). PO Mucciariello denied entering § 87(2)(b)'s pockets during the incident.

After reviewing the Stop, Question and Frisk report he filed for § 87(2)(b) following this incident, PO Mucciariello stated that § 87(2)(b)'s actions which he believed to be indicative of her engaging in a drug transaction were that of her entering and exiting the building. PO Mucciariello added that the furtive movements he noted were that § 87(2)(b) reached towards and into her pockets. PO Mucciariello could not remember whether § 87(2)(b) made any additional furtive movements during the incident.

PO Mucciariello added that § 87(2)(b) refused to comply with his directions when she did not immediately comply with his orders to stop reaching towards and into her pockets. PO Mucciariello further added that § 87(2)(b) was compliant by virtue of answering his questions.

PO Mucciariello denied making the following statements during the incident: "Where is the fucking heroin?," "Shut your mouth until I'm finished talking to you," "We know you have the fucking drugs," "You have a fucking aspirin on you," "What is your fucking name," "Get the fuck out of here," or "Why are you so fucking surprised?" PO Mucciariello denied making any additional physical contact with § 87(2)(b) other than at the time he frisked her.

PO Mucciariello stated that he conducted the stop, and he did not recall observing PO Kashinsky and PO Lindner interact with § 87(2)(b).

Subject Officer: POLICE OFFICER SCOT KASHINSKY

- *PO Kashinsky was § 87(2)(b) old at the time of the incident. He is a white man, is 6' tall, weighs 250 pounds, and has brown hair and brown eyes.*
- *On August 25, 2013, PO Kashinsky worked the same tour and assignment as PO Mucciariello.*

Memo Book Entries

At 11:35 p.m., § 87(2)(b) was stopped and suspected of engaging in the criminal sale of controlled substances at § 87(2)(b). At 11:45 p.m., a Stop, Question and Frisk report was filed (encl. I1-I5).

CCRB Testimony

On January 9, 2014, PO Kashinsky was interviewed at the CCRB (encl. K1-K3). His statement is summarized below.

On August 25, 2013, at approximately 11:35 p.m., PO Kashinsky was inside an unmarked patrol van with PO Mucciariello and PO Lindner, in the vicinity of § 87(2)(b) when PO Mucciariello informed PO Kashinsky that he had observed § 87(2)(b) enter, by simply opening the door, and exit the building after remaining inside for only a few minutes. PO Kashinsky

described the area as being both drug and weapon-prone. PO Kashinsky also observed § 87(2)(b) s entry into and exit out of the building. PO Kashinsky did not observe § 87(2)(b) use the intercom to access the building.

PO Mucciariello then decided to stop § 87(2)(b) who was walking away from the building at that point. PO Kashinsky did not recall observing § 87(2)(b) make any significant physical movements at that point. PO Kashinsky did not observe § 87(2)(b) interact with any civilians prior to the stop.

PO Mucciariello first approached § 87(2)(b) and asked her to stop twice before she complied. PO Mucciariello then asked § 87(2)(b) questions to the effect of, “What were you doing in the building,” and “Do you know anyone in the building.” § 87(2)(b) explained to the officers that she had been visiting a resident of the building.

During that exchange, § 87(2)(b) started acting fidgety by reaching towards her front and back pockets. PO Mucciariello then ordered § 87(2)(b) to stop making that motion thrice before she complied. PO Kashinsky did not observe § 87(2)(b) actually enter her pockets.

PO Mucciariello then frisked § 87(2)(b) s pockets, and possibly her waistband, but did not recover any contraband. PO Kashinsky did not observe any bulges on § 87(2)(b). The officers released § 87(2)(b) and left the area soon after the frisk. PO Kashinsky added there were no additional factors leading the officers to believe § 87(2)(b) had engaged in a crime.

PO Kashinsky did not see PO Mucciariello make physical contact with § 87(2)(b) other than at the time he frisked her. PO Kashinsky did not see PO Mucciariello enter § 87(2)(b) s pockets.

PO Kashinsky did not hear PO Mucciariello state to § 87(2)(b) “Where is the fucking heroin?,” “Shut your mouth until I’m finished talking to you,” “We know you have the fucking drugs,” “You have a fucking aspirin on you?,” “What is your fucking name?,” “Get the fuck out of here,” or “Why are you so fucking surprised?”

PO Kashinsky stated that his role and that of PO Lindner during the stop was to solely be present alongside PO Mucciariello. PO Kashinsky denied interacting with § 87(2)(b) or observing PO Lindner do so.

Subject Officer: POLICE OFFICER VINCENT LINDNER

- *PO Lindner was § 87(2)(b) old at the time of the incident. He is a white man, is 6’ tall, weighs 240 pounds, and has brown hair and brown eyes.*
- *On August 25, 2013, PO Lindner worked the same tour and assignment as PO Mucciariello and PO Kashinsky.*

Memo Book Entries

At 11:35 p.m., § 87(2)(b) was stopped at § 87(2)(b) for suspicion of criminal possession of a controlled substance. At 11:45 p.m., PO Mucciariello filed a Stop, Question and Frisk report (encl. L1-L4).

CCRB Testimony

On January 9, 2014, PO Lindner was interviewed at the CCRB (encl. N1-N3). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

PO Lindner testified that he did not see § 87(2)(b) use a key to enter the building. PO Lindner added that § 87(2)(b) was walking towards the officers, at which point they exited the van. PO Lindner further added that PO Mucciariello stopped § 87(2)(b) by pointing his finger towards her direction and asking her to stop at least twice before she complied.

PO Lindner added that § 87(2)(b) appeared nervous and was sweating. PO Lindner stated that at the time PO Mucciariello first instructed her to stop, § 87(2)(b) had already started reaching into her pockets and waist area, which he considered to be furtive. However, PO Lindner stated that § 87(2)(b) did not retrieve any items from her pockets.

PO Lindner did not remember any of the statements made by PO Mucciariello other than those related to his questioning of § 87(2)(b) about her whereabouts and her pedigree information, and his explaining to her of the reason why he had stopped her.

PO Lindner stated that the only physical contact PO Mucciariello had with § 87(2)(b) was at the time he frisked her. PO Lindner added that PO Mucciariello did not enter § 87(2)(b)'s pockets. PO Lindner did not hear PO Mucciariello say, "Where is the fucking heroin?," "Shut your mouth until I'm finished talking to you," "We know you have the fucking drugs," "You have a fucking aspirin on you," "What is your fucking name?," "Get the fuck out of here," or "Why are you so fucking surprised?"

PO Lindner further added § 87(2)(b) did not change direction as the officers approached her, and that she instead kept walking straight towards them. § 87(2)(b) did not make any additional furtive movements.

PO Lindner denied interacting with § 87(2)(b) or observing PO Kashinsky do so. PO Lindner added that he and PO Kashinsky's role was to simply be present for the stop.

Officer Not Interviewed

§ 87(2)(b) stated that a fourth officer was present. However, all officers interviewed denied being partnered with a fourth officer at the time of the incident. The roll call for PSA1, from the date of the incident, does not indicate that a fourth officer, including a supervisor, may have been partnered with PO Mucciariello, PO Kashinsky, and PO Lindner. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

NYPD Documents

PSA 1 Vehicle Assignment Sheet

The vehicle assignment sheet from the date of the incident indicates that Anti-Crime officers were assigned to vehicle number § 87(2)(b) at the time of the incident, which is listed as being a red van (encl. P).

PSA 1 Roll Call

The roll call from the date of the incident indicates that PO Mucciariello, PO Kashinsky, and PO Lindner were all assigned to Anti-Crime as well as vehicle number § 87(2)(b) (encl. O1-O7).

Other Evidence

NYCGovMap

A NYCGovMap search of § 87(2)(b) indicates that the building is owned by NYCHA. It also indicates that the building is part of a group of eight buildings and that they comprise a combined total of 576 residential units (encl. B7).

Status of Civil Proceedings

As of March 28, 2014, approximately four months following the expiration of the filing deadline, § 87(2)(b) has not filed a notice of claim with the City of New York in regards to this incident (encl. R).

Civilian Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Civilian CCRB History

- This is the first CCRB complaint filed by [§ 87(2)(b)] (encl. B2).

Subject Officer CCRB History

- PO Mucciariello has been a member of the service for seven years and there are no substantiated CCRB allegations against him (encl. B1).

Conclusion

Identification of Subject Officer

All statements indicate that PO Mucciariello initiated and conducted the stop of [§ 87(2)(b)] and PO Kashinsky and PO Lindner added that PO Mucciariello made the decision to stop her.

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: On August 25, 2013, PO Blase Mucciariello questioned [§ 87(2)(b)]

[§ 87(2)(g)]
[REDACTED]
[REDACTED]
[REDACTED]

[§ 87(2)(b)] stated that prior to exiting a NYCHA building and being approached by the officers, she had entered the building by simply pulling its front door open, the lock to which was broken. [§ 87(2)(b)] denied making any movements towards her pockets prior to the officers' approach.

All officer statements corroborated that [§ 87(2)(b)] was alone at the time she had been observed, and that she had entered and exited a NYCHA building known to be a drug-prone location.

PO Mucciariello suspected [§ 87(2)(b)] to have trespassed into the building solely because he did not recognize her from the area and he also suspected her to have engaged in a drug transaction solely because he knew the building to be a drug-prone location. While walking, [§ 87(2)(b)] reached towards and into her front short pockets, which PO Mucciariello considered to be a furtive movement. PO Mucciariello approached [§ 87(2)(b)] to ensure that she had a legitimate reason to have entered the building and that she did not participate in a drug transaction while there. PO Mucciariello first ordered [§ 87(2)(b)] to stop twice before she complied and he then asked her questions to the effect of, "Do you live in the building?," and "Were you visiting somebody inside the building?"

PO Kashinsky and PO Lindner both indicated that [§ 87(2)(b)] did not use a key to enter the building, and PO Kashinsky also added that she did not use the intercom either. Additionally, PO Mucciariello stated that he did not know whether the door was locked at the time [§ 87(2)(b)] opened it. PO Kashinsky and PO Lindner corroborated that [§ 87(2)(b)] did not immediately stop upon request, and PO Lindner elaborated that [§ 87(2)(b)] instead kept on walking towards the officers' direction. PO Kashinsky further added that PO Mucciariello also first asked [§ 87(2)(b)] a question to the effect of, "What were you doing in the building?"

The Stop, Question and Frisk report indicates that § 87(2)(b) was stopped following her taking actions indicative of engaging in a drug transaction and making furtive movements. The report also lists that § 87(2)(b) changed direction, or fled, at the sight of the officers.

The NYCGovMap print-out of § 87(2)(b) indicates that the building is owned by NYCHA and is part of a group of eight buildings which comprise a combined total of 576 residential units.

According to People v. Debour, 40 N.Y.2d 210 (1976), officers are warranted in approaching an individual and requesting information from him, which is considered a level one encounter, when there is “some credible reason for that interference not necessarily indicative of criminality.” Debour also held that officers are warranted in interacting with an individual to the extent necessary to gain explanatory information, which is considered to be a level two interaction, whenever there is founded suspicion that criminal activity is afoot (encl. A1-A11).

In People v. Almonte, 30 Misc. 3d 124(A) (Sup. Ct., Bronx Co. 2011) the court held that the observation of an individual exiting a building known to be a drug-prone location, that is also a “trespass affidavit” building, does not provide an officer with the objective credible reason required to initiate a level one interaction with that person, without some additional factor. In that case, the court also determined that a civilian’s grabbing of his waistband at the sight of an officer does not provide any information regarding criminal activity (encl. A12-A13).

The First Department also held in People v. Balanco, 158 A.D.2d 367 (1st Dept. 1990), that the observation of an individual in a drug-prone area who adjusts the waistband of his trousers at the sight of an officer is not sufficient to initiate a level one interaction (encl. A14).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation B – Abuse of Authority: On August 25, 2013, PO Blase Mucciariello stopped

§ 87(2)(b)

Allegation C – Abuse of Authority: On August 25, 2013, PO Blase Mucciariello frisked

§ 87(2)(g)

It is however undisputed that § 87(2)(b) exited § 87(2)(b) and that PO Mucciariello eventually stopped her.

§ 87(2)(b) stated that after she exited the building, the officers blocked her path with a patrol van and PO Mucciariello immediately ordered her to drop her arms down and then started asking her questions pertaining to her possible involvement in drug-related crimes. Although § 87(2)(b) stated that she was not frisked during the incident, PO Mucciariello admitted frisking her.

PO Mucciariello stated that he first ordered § 87(2)(b) to stop twice before she complied and he asked her questions to the effect of, “Do you live in the building?” and, “Were you visiting somebody in the building?” § 87(2)(b) claimed she was visiting a friend and PO Mucciariello “took her word for it” without verifying her claim. All officer statements indicate that § 87(2)(b) then started reaching towards and into her front shorts’ pockets, where no bulge was observed, and PO Mucciariello ordered her to stop making the motion, which PO Mucciariello considered to be furtive, thrice before she complied. PO Mucciariello added that § 87(2)(b) made the same movement prior to and during the stop, for a total of three times, and that she was compliant in regards to answering his questions. All officer statements further indicate that PO Mucciariello then frisked § 87(2)(b). PO Mucciariello testified that he did not feel any object, during the frisk, which would have alarmed him.

The Stop, Question and Frisk report indicates that PO Mucciariello frisked § 87(2)(b) following her refusal to comply with his direction and also for making furtive movements. PO Mucciariello also listed that § 87(2)(b) changed direction or fled at the sight of him, and gave evasive, false or inconsistent replies to his questions. PO Mucciariello’s memo book entry further indicates that § 87(2)(b) was observed repeatedly reaching towards her front short pockets and that she was frisked for safety purposes.

According to People v. Moore, 93 A.D.3d 519 (1st Dept. 2012), an interaction is raised to a seizure whenever physical force is used, or if no physical force is used, the person is submitted to the assertion of authority (encl. A15-A17). Additionally, in People v. Almonte, 30 Misc. 3d 124(A) (Sup. Ct., Bronx Co. 2011), the court held that a civilian’s grabbing of his waistband at the sight of an officer does not provide any information regarding criminal activity, and would not have raised a level one approach to a level two encounter (encl. A12-A13). Moreover, People v. Debour, 40 N.Y.2d 210 (1976) held that innocuous behavior alone will not generate a founded nor a reasonable suspicion, a prerequisite for a seizure, also known as a stop, that a crime is at hand (encl. A1-A11). Further, the First Department held in Matter of Darryl C., 98 A.D.3d 69 (1st Dept. 2012), that absent a reasonable suspicion that a civilian is armed and has committed, is committing, or is going to commit a crime, officers cannot conduct a frisk (encl. A18-A28). Lastly, according to People v. Berberena, 264 A.D.2d 670 (1st Dept. 1999), an officer does not have a founded suspicion that criminality is afoot, in the absence of any suspicious circumstances, based on a person’s nervous behavior of a minimal and equivocal nature (encl. A29-A30).

§ 87(2)(g)

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

Allegation D – Discourtesy: On August 25, 2013, PO Blase Mucciariello spoke rudely to

§ 87(2)(b)

Allegation E – Abuse of Authority: On August 25, 2013, PO Blase Mucciariello searched

[REDACTED]

Allegation F – Force: On August 25, 2013, PO Blase Mucciariello used physical force against

§ 87(2)(b) alleged that PO Mucciariello stated to her, “Where is the fucking heroin?” “We know you have the fucking drugs,” “You have fucking aspirin on you?” “What is your fucking name?” “Get the fuck out of here,” and “Why are you so fucking surprised?” § 87(2)(b) also alleged that PO Mucciariello ordered her to remove the content of her pockets and that he eventually entered her pockets himself after she had already complied with his order. § 87(2)(b) stated that she was released soon after PO Mucciariello physically searched her. § 87(2)(b) also alleged that PO Mucciariello pushed her away during the incident.

Reviewer: _____
Title/Signature Print Date